

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER
OCCURRED ON THE ACTUAL DOCKET — ALL FACTS AND
IDENTIFIERS ARE FICTIONAL**

United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

No. SYN-CA4-26-CV-4103-CF-NEVER-OCCURRED

Stay-Dissolution Order

Entered February 9, 2026

The temporary stay entered February 6 is dissolved. The district clerk certified the complete interlocutory record this morning, and a successor district judge has received the case following conflict screening. The parties filed prompt status notices as directed. Having reviewed those developments and the transmitted materials, the Court concludes that continued suspension is not warranted.

The February 6 order was deliberately provisional. It addressed a short reassignment interval, an incomplete record, and uncertainty surrounding an approaching staffing decision. It did not decide the ultimate appeal or promise that relief would continue after those circumstances changed. Record completion now permits review of the full preliminary-injunction and district proceedings, and the successor judge is available to address any concrete implementation question within the originating action.

The staffing option also remains preserved. Norvale's status notice confirms that the two supplemental employees were reserved without a nonrefundable payment and may be canceled under the agreement. The City therefore has not lost the planning choice identified in its emergency declaration. Direct site coordination for the February 14 fair continues through the neutral powers preserved by the January 23 order.

These facts remove the immediate basis for the short stay. They do not resolve the City's merits arguments concerning tailoring, specificity, or security, which remain for orderly appellate consideration.

Effect of Dissolution

Upon entry of this order, the January 23 preliminary injunction again governs according to its terms. Norvale shall cease using the temporary authority supplied on February 6 and shall not collect, accrue, or condition approval on either challenged charge for the Guild's February fair. No amount may be recovered retroactively for action taken while the provisional order was in force.

The City retains the authority expressly preserved by the injunction. It may administer reservations, capacity, traffic, emergency access, sanitation, physical layout, competing uses, and materially changed event conditions. It may request direct logistical information such as time, location, format, equipment, expected attendance, loading arrangements, and emergency contacts when those questions are applied without regard to speaker payment or viewpoint.

The Guild shall continue supplying promised operational updates and complying with lawful, documented site measures. If a particular substitution changes attendance, equipment, format, duration, or location, the parties shall confer promptly. Any application for clarification should identify the concrete request and disputed term rather than seek reconsideration of the entire stay motion.

Dissolution does not imply that the February 6 safeguards were violated. The parties report no viewpoint inquiry, no disputed condition, and no fee collection during the three-day interval. The change rests on completed record transmission, restored district-court availability, and preservation of the staffing option. Those events permit the appeal to proceed without continued emergency suspension.

Continuing Appeal

The Court expresses no final view on whether Ordinance N-2025-18 is adequately tailored, whether the injunction satisfies Rule 65(d), or what express security determination Rule 65(c) requires. The appeal remains within 28 U.S.C. § 1292(a)(1), and the parties will brief those questions under the schedule entered with the record-completion notice. A stay ruling does not settle preliminary-injunction entitlement.

Nor does this order alter the underlying action. The successor district judge may supervise implementation, clarify procedure through an appropriate ruling, consider materially changed circumstances, and continue merits proceedings consistent with the appellate court's interlocutory jurisdiction. No permanent injunction or final judgment has been entered.

The temporary appellate stay is dissolved in full as of February 9, 2026. The City's request to continue any portion of it through the February fair is denied. The Guild's request for restoration of the January 23 protection is granted to that extent. Each side shall preserve the permit and staffing record while review continues.

The Clerk shall enter dissolution on the docket immediately, transmit this order to the district clerk and successor judge, and provide electronic notice to all counsel. The briefing schedule remains unchanged. Entered at the direction of the panel on February 9, 2026.